

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN INDIA

Complete Community Opposition How-To

This is a practical manual for gram sabhas, Adivasi and forest-dwelling communities, farmers, fishing communities, and citizens' groups who wake up to find that a forest, a hill, a river, a coast, or farmland they depend on has been opened to something destructive — a mine, a coal or thermal power plant, a dam, a smelter or refinery, a port, an expressway, an industrial estate. It explains how India's approval system for large projects actually works, where the real openings are, what to document, how to organise, and how to use the levers Indian law and India's own history of community resistance provide. It does not promise that any project can be stopped. It offers a clear-eyed method that gives you the best possible chance.

INTRODUCTION & FRAMEWORK

Why This Matters

Across India, communities discover that a place they live from — a forest their families have gathered in for generations, a hill they worship, a river they fish and farm along, a stretch of coast, a field of standing crops — has been allotted to a mine, a power plant, a dam, or an industrial project, often through decisions taken far away and without the people on the land being meaningfully consulted. The first sign is often the survey teams and boundary markers, the notice of a public hearing few can reach, the trucks and earthmovers, or the quiet news that an environmental clearance has been granted to a company most in the affected village had never heard of.

India's situation is, in one crucial respect, hopeful. This is a country of relentless development pressure — coal, bauxite, iron ore, dams, expressways, ports, coastal industry — but it is also a country with some of the strongest environmental and community-rights law in the developing world, and a documented history of communities using that law to win. The single most important fact for any Indian community to hold onto is this: **in India, a village assembly of a few thousand Adivasis once voted down one of the world's largest mining companies, and the Supreme Court made that vote binding.** That is not a slogan. It is the record of Niyamgiri, and it is the ground this guide stands on.

The struggle that teaches both truths a community must hold at once is the fight of the Dongria Kondh over the Niyamgiri Hills in Odisha. Vedanta Resources and the state-owned Odisha Mining Corporation planned to mine bauxite from a hill the Dongria Kondh — a Particularly Vulnerable Tribal Group of some eight thousand people — worship as their deity, Niyam Raja, to feed a refinery below at Lanjigarh. The community, supported by activists and international allies, resisted for years. And then, on 18 April 2013, in *Orissa Mining Corporation v. Ministry of Environment & Forest*, the Supreme Court of India held that the affected **gram sabhas** — the village assemblies — would decide whether the mining would infringe their cultural, religious, and community rights, and that their decision would bind. In what became India's first environmental referendum, all twelve gram sabhas voted, unanimously, against the mine. The environment ministry then refused the clearance. A tribe of eight thousand had defeated a company whose principal shareholder was a billionaire. That is real power, and it is Indian. The detail is worth holding onto. Vedanta had planned to draw some seventy-odd million tonnes of bauxite from the Niyamgiri hilltop to feed its alumina refinery already built below at Lanjigarh, across the tribal-dominated districts of Kalahandi and Rayagada. The environment ministry had first rejected the plan in 2010, after official inquiries found it would gravely violate forest and environmental law and the rights of the Dongria Kondh. When the mining corporation challenged that refusal, the Supreme Court did not simply decide the question itself — it handed the decision to the people whose deity and forest were at stake, ordering that the gram sabhas convene independently, uninfluenced by company or government, under the supervision of the tribal-affairs ministry and local judges. Twelve villages — five in Kalahandi, seven in Rayagada — said no, and the ministry made the refusal final.

The second truth is sobering. **Not every community has a Niyamgiri, and the system is often tilted hard toward the project.** Environmental clearances are granted despite serious defects; public hearings are held far from the affected village, or bypassed under exemptions; the government frequently champions the very projects communities oppose; activists have faced surveillance, defamation suits, and worse; and the environmental-clearance rules themselves have repeatedly been diluted. India shows both what a determined community and India's remarkable laws can achieve — a mine stopped by a village vote, a clearance quashed by a specialist green court — and how hard the fight is when the state backs the project and the machinery is skewed.

Underneath both truths is the framework this guide will help you use: **India is a constitutional democracy whose**

Supreme Court has held the right to a clean and healthy environment to be part of the fundamental right to life; it has an environmental-clearance law with a mandatory public hearing; a specialist National Green Tribunal built to hear environmental cases quickly; a Forest Rights Act that gives Adivasi and forest-dwelling gram sabhas real power over their forests; a powerful Right to Information Act; an independent and activist higher judiciary reachable by public interest litigation; and a free, fierce press and a dense civil society.

Protest, petition, and litigation are lawful. That combination is what this guide is about.

The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A large project in India needs its environmental clearance; it needs a sound environmental impact assessment and a genuine public hearing; on forest land it needs forest clearance and, where Adivasi and forest-dwellers' rights are involved, the consent of the gram sabhas under the Forest Rights Act; it needs land, which the land-acquisition law now hedges with consent and social-impact requirements; it must survive the National Green Tribunal, the High Courts, and the Supreme Court; and it must avoid the scrutiny of a free press and a watchful public. Each is a potential point of leverage.

The projects that trigger these fights span India's whole development frontier: open-cast coal and iron-ore and bauxite mines that eat forests and hills; large dams that submerge valleys and displace whole populations; coastal ports, thermal plants, and industrial estates that foul air, water, and fisheries; and expressways and new cities that consume farmland. The levers differ by project — the forest lever bites hardest on a mine in an Adivasi forest, the land-acquisition consent on a project taking farmland, the coastal-regulation rules on a port — so part of your task is matching the right lever to the project in front of you.

Your task is to find the link you can reach. Sometimes it is the environmental clearance and a defect in the assessment — a public hearing that was a sham, an impact that was never studied. Sometimes it is the forest, and the gram sabha consent the Forest Rights Act requires, the very lever that stopped the mine at Niyamgiri. Sometimes it is the land, and the consent and social-impact assessment the acquisition law demands. Sometimes it is the National Green Tribunal, which can cancel a clearance outright. And often it is the higher courts through a public interest litigation, and the press and public attention that a project cannot escape.

Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by the right petition would be lying to you.

Where a project needs forest clearance over Adivasi or forest-dwellers' land, or its environmental clearance has a real defect, and you can organise and reach the Tribunal, the courts, and the press, India's levers are genuine. Niyamgiri is the proof of what the Forest Rights Act and a determined community can do; the National Green Tribunal has cancelled clearances granted in breach of the law.

Where the government champions the project, where the clearance is sound and the project already built, and where activists face intimidation, the outright stop is hard, and resistance can carry real personal risk. The dilution of the clearance rules, the sham hearings, and the pressure on campaigners are the warning. There the levers still matter, but you must weigh the odds honestly and think in terms of gram sabha consent, delay, quashed or conditioned clearances, rehabilitation, and exposure as much as an outright stop.

Much of this guide is designed to help you judge which situation you are in.

How to use this guide

Read the whole thing once before acting. Read the legal, organising, and tilted-system sections with particular care, because in India the environmental clearance and public hearing, the Forest Rights Act consent, the National Green Tribunal, and the higher courts are the sharpest levers, and the government's stance shapes everything. Two principles run throughout. First, **use the consent and participation rights the law already gives you:** the public hearing, the gram sabha's power over forest land, the land-acquisition consent — these are real, hard-won rights, and much of your work is insisting they be honoured. Second, **combine the strands:** documentation, the clearance challenge, the gram sabha, the Tribunal, the courts, the press, and public attention work far better together than any one alone — exactly as the Niyamgiri campaign combined them.

HOW THE SYSTEM WORKS

To break the chain you must understand it. This section explains the levels of decision, the journey a project takes from clearance to construction, how to follow the money behind it, and who is supposed to be watching.

The Levels of Decision

Decisions about large projects in India are made at several levels, and the level determines where you push.

Central (national) level. The largest projects — Category A projects such as major mines, large thermal power plants, ports, and airports — are appraised by the central Ministry of Environment, Forest and Climate Change (MoEFCC), on the recommendation of an Expert Appraisal Committee, which grants or refuses the environmental clearance. Forest diversion is approved centrally under the Forest (Conservation) Act. National laws — the Environment (Protection) Act, the EIA Notification, the Forest Rights Act, the National Green Tribunal Act — set the framework.

State level. Smaller projects — Category B — are appraised by a State Environment Impact Assessment Authority on the recommendation of a State Expert Appraisal Committee. The State Pollution Control Board conducts the public hearing and issues consents to establish and operate. The state government also plays a central role in land acquisition, in mining leases, and in whether it champions or resists a project. Much of the real administration and monitoring happens at the state and district level.

District and gram sabha level. The district administration conducts land acquisition and, in Scheduled Areas, the gram-sabha processes that the Forest Rights Act and PESA require. The **gram sabha** — the assembly of all adult villagers — is, for Adivasi and forest-dwelling communities, the most important body of all: under the Forest Rights Act it holds power over community forest resources and its consent can be decisive, as Niyamgiri showed. This is both where the harm lands and where your organising begins.

The point: match your effort to the level that holds the decision you are trying to affect. A Category A clearance and forest diversion are central; the public hearing, the state consents, and land acquisition are state and district; and the gram sabha's power is exercised in the village itself.

A Project's Journey — and Where It Can Be Stopped

A large project typically moves through recognisable stages. Each is a potential intervention point.

1. Screening and scoping. The project is categorised (A or B; B into B1 or B2), and the Terms of Reference for the impact study are set. *Intervention point:* whether the project has been correctly categorised, and whether the Terms of Reference cover the impacts that matter — a wrongly down-categorised project, or a scope that omits a key impact, is a defect.

2. The environmental impact assessment. A consultant, hired by the project proponent, prepares the EIA report and an environmental management plan. *Intervention point:* the quality and honesty of the EIA — its treatment of water, forests, displacement, pollution, and cumulative impacts, and the tension that the assessor is paid by the very company whose project it evaluates.

3. The public consultation. For most significant projects a public hearing is held at the site by the State Pollution Control Board, with at least thirty days' notice, with the draft EIA available in English and the regional language, and with written objections invited. *Intervention point:* the public hearing is a formal legal right and one of your sharpest openings — its adequacy, its accessibility to the affected people, and the recording and consideration of objections are all contestable, and a bypassed or sham hearing is a serious defect.

4. Forest and tribal-rights clearance. If the project needs forest land, it requires forest clearance, and where Adivasi and forest-dwellers' rights are involved, the settlement of those rights and the consent of the gram sabhas under the Forest Rights Act. *Intervention point:* this is the Niyamgiri lever — forest diversion cannot lawfully proceed over the objection of gram sabhas whose forest rights it would infringe.

5. Appraisal and clearance. The Expert Appraisal Committee reviews the EIA, the management plan, and the public-hearing proceedings, and the authority grants or refuses the environmental clearance. A few concrete features of this process are worth knowing, because they are where cases are won and lost. The whole clearance process now runs online through the government's PARIVESH portal, so filings and decisions leave a documentary trail you can obtain. The public-hearing stage requires at least thirty days' notice and a draft EIA available both in English and in the regional language — failures on either count are common and challengeable. Projects within ten kilometres of a national park or wildlife sanctuary are pushed into the more rigorous B1 category requiring a full assessment. And very small mining leases below

five hectares are generally exempt — a threshold sometimes exploited by splitting a large operation into smaller nominal leases, which is itself worth watching for. *Intervention point:* the appraisal is meant to be a genuine scrutiny, not a formality, and a clearance granted despite an inadequate EIA, a defective hearing, or unresolved forest rights is open to challenge.

6. Land acquisition, construction, operation. Land is acquired, the project is built and run. *Intervention point:* the consent and social-impact requirements of the land-acquisition law; and, once operating, whether the project complies with its clearance conditions — a violation is leverage.

The chain has many links. Your job is to find the one nearest to hand.

Follow the Money and the Permissions

Behind every project is a structure of ownership, finance, and permission you can map — and mapping it tells you where the pressure points are.

Who is the proponent, and who owns it? Company filings, the project's own EIA and clearance documents, and stock-exchange disclosures reveal who is behind the project and who controls it. A listed company, or a subsidiary of a multinational, is exposed to investors and to reputational pressure — as Vedanta was over Niyamgiri.

What permissions does it need, and which does it lack? Map the environmental clearance, the forest clearance, the state pollution-board consents, the mining lease, and the land acquisition. The permission the project still needs — the clearance not yet granted, the forest rights not yet settled, the gram sabha not yet consulted — is where it is most vulnerable.

Who is financing it? Trace the lenders and investors. A project financed by public-sector banks, by international development finance, or by listed investors is exposed to their standards and their reputational concerns. Public disclosure documents and financing announcements let you follow the money — and every financier is a potential point of leverage.

What does the land cost the community, in law? Since 2013, the acquisition of land for most projects is governed by a law — the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act — that, for many categories of project, requires a Social Impact Assessment and the prior consent of a large majority of affected families (a supermajority whose exact threshold depends on whether the project is public-private or purely private). These consent and social-impact requirements are real procedural rights, and a project that acquires land without honouring them is exposed — another link in the chain, and one that reaches the farmers and landholders as directly as the forest lever reaches the Adivasi gram sabha.

Who Is Supposed to Be Watching

Several institutions exist to check power, and each is a potential ally or venue.

The MoEFCC and the State authorities grant clearances and are meant to appraise honestly and monitor compliance — and can be pressed, formally and publicly, to do both.

The State Pollution Control Boards run the public hearings and issue consents, and their conduct of the hearing is itself reviewable.

The National Green Tribunal, established in 2010, is a specialist environmental court that can hear challenges to clearances and can cancel them; it is examined in detail below.

The High Courts and the Supreme Court, reachable through public interest litigation, guard the fundamental right to a healthy environment.

The gram sabha, under the Forest Rights Act and PESA, is itself a statutory decision-maker with real power over forest land.

The free press, civil-society organisations, and research groups are experienced, well-connected, and often your fastest route to national attention.

The Comptroller and Auditor General and parliamentary committees can scrutinise how public resources, leases, and clearances have been handled, and their reports have exposed irregularities in the allocation of coal and mineral resources — another arena where a well-documented case can find an official echo.

No single one of these is a guarantee. Together they are the architecture of accountability this guide teaches you to use.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how Indian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project needs gram sabha consent over forest land, whether the environmental clearance has a real defect, whether you can reach the Tribunal and the higher courts, and how firmly the government backs the project. Where forest-rights consent is required or the clearance is defective and the world is watching, India's levers are real; where the government champions the project and the machinery is skewed, discount the figures and think in terms of consent, delay, quashed clearances, rehabilitation, and exposure.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public hearing participation / written objections	15-35%	during review	low	On record; conditions or a redo
Gram sabha consent under the Forest Rights Act	35-60%	6-36 months	low	Forest diversion blocked; project stalled or stopped
National Green Tribunal challenge	25-45%	6-30 months	moderate	Clearance quashed, stayed, or conditioned; delay
RTI-driven exposure of defects	15-35%	1-12 months	low	Record obtained; defect proven; leverage
Public interest litigation (High Court / Supreme Court)	20-45%	12-48 months	moderate	Clearance reviewed; rights enforced; delay
Documenting a legal violation (clearance-condition breach)	25-45%	3-18 months	low	Breach exposed; leverage; possible action
Mass, connected public mobilisation	25-45%	6-36 months	low	Political cost; a project reconsidered
All steps combined (forest-rights consent required, world watching)	45-65%	12-36 months	low-moderate	Stalled, stopped, delayed, or forced to change
All steps combined (government-backed, machinery skewed)	20-40%	12-48 months	low-moderate	Delayed, quashed, conditioned; rarely stopped outright

Key insight: all steps together beat any single one, and India's real strengths are unusual — a **Forest Rights Act** that gives Adivasi and forest-dwelling gram sabhas genuine consent power over their forests, India's most distinctive lever; an **environmental-clearance law** with a mandatory public hearing; a **specialist National Green Tribunal** that can cancel clearances; a **constitutional right to a healthy environment** enforceable through **public interest litigation**; a **powerful Right to Information Act**; and a **free press and dense civil society**. Its constraints are a **state that backs big projects, clearances granted despite defects, public hearings that are sometimes shams or bypassed, repeated dilution of the rules**, and real **pressure on campaigners**.

A note on cost: participating in hearings, filing RTIs, documenting, and organising are inexpensive, and legal-aid groups, environmental lawyers, and civil-society organisations have carried community cases far. The expenditure that most changes outcomes is committed legal support before the Tribunal and the courts and the reach of a sustained public campaign — both of which the Niyamgiri movement marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, quashed, forced to change, or stopped)

FOREST-RIGHTS CONSENT REQUIRED, WORLD WATCHING:

All steps combined:	45-65%
Gram sabha (FRA) consent:	35-60%
Green Tribunal challenge:	25-45%
Public interest litigation:	20-45%
Single step:	5-45%

GOVERNMENT-BACKED PROJECT -- state champions it, machinery skewed:

All steps combined:	20-40%
Consent + PIL + exposure:	the strongest combination
Delay / quashed clearance:	more achievable than an outright stop
Single step:	5-30%

How to read this honestly. The levers that most change outcomes in India are **the Forest Rights Act's gram sabha consent and the courts** — the Tribunal and the higher judiciary — reinforced by the public hearing, RTI, and public attention. Niyamgiri shows the ceiling: a village vote, made binding by the Supreme Court, stopped the mine outright. The floor is set by a government that backs big projects, clearances granted over defects, and pressure on activists. Most Indian fights sit between them, and the honest lesson is that India's rights are real and have produced outright wins — but against a government-backed project the realistic win is often consent asserted, a clearance quashed or stayed, delay, rehabilitation secured, and a project worn down, more than an easy stop.

Step Importance Ranking (When All Combined)

1. **Gram sabha consent under the Forest Rights Act** — where the project needs forest land over Adivasi or forest-dwellers' rights, the village assembly's power is India's strongest and most distinctive lever, as Niyamgiri proved.
2. **The courts — the National Green Tribunal and public interest litigation** — the specialist tribunal that can cancel a clearance, and the higher courts that enforce the right to a healthy environment.
3. **Documentation of the clearance's defects and any violations** — the record, including a sham hearing or an unstudied impact, that grounds every other step, much of it obtainable through RTI.
4. **The public hearing and written objections** — the formal participation right that puts your case on the legal record and can force conditions or a redo.
5. **Public mobilisation and the press** — the further fronts that raise the political cost, reach investors, and protect the campaign.

What Indian Campaigns Actually Show

A few patterns recur. **Community consent over forest land is real, decisive power** — at Niyamgiri, the Supreme Court in 2013 made the Dongria Kondh gram sabhas the deciders, and their unanimous vote stopped Vedanta's bauxite mine and forced the environment ministry to refuse clearance, in India's first environmental referendum. **The specialist green court has teeth** — the National Green Tribunal has quashed and stayed environmental clearances granted in breach of the law, and its orders carry the force of a civil-court decree. **The right to a healthy environment is enforceable** — India's Supreme Court has read it into the fundamental right to life, and public interest litigation lets ordinary citizens bring environmental cases to the highest courts. **But the machinery is often skewed** — clearances are granted despite defective assessments, public hearings are held far from the affected or bypassed under exemptions, and the government frequently backs the very projects communities resist. **Niyamgiri is not the only such story** — the Silent Valley hydroelectric project in Kerala was abandoned in the 1980s after a sustained nationwide campaign, and the Sterlite copper smelter at Thoothukudi in Tamil Nadu was ordered shut in 2018 after prolonged public protest, showing that determined, sustained public pressure has changed outcomes across very different projects and decades. **And resistance can carry risk** — campaigners have faced surveillance, defamation and criminal cases, and worse. The through-line: **assert your gram sabha's forest-rights consent, use the public hearing, extract the record through RTI, take the clearance to the National Green Tribunal and the higher courts, mobilise the press and the public — and expect a fight measured in consent asserted, clearances quashed or conditioned, delay, rehabilitation, and exposure as much as an outright stop, while knowing that in India communities have, more than once, won outright.**

STEP 1: TARGET IDENTIFICATION

Before you can fight a project, you must understand it precisely. Vague opposition to "the project" is weak; a specific challenge to a specific decision is strong. This step turns alarm into a target.

The Five Core Questions

Answer these five questions, in writing, as fully as you can. They convert a threat into a plan.

1. What exactly is the project, and who is behind it? Name the project, the proponent company, its owners and parent, and — if you can find it — the financiers. Is it a mine, a thermal plant, a dam, a smelter, a port, an expressway? Category A or B? Coal, bauxite, iron ore, limestone? A listed company or a public-sector undertaking? The precise identity determines which levers apply — a forest-land project opens the Forest Rights Act; a listed multinational opens reputational and investor pressure.

2. Where exactly is it, and what protected features and rights does it touch? Get the boundaries and overlay them on what you know: Is it on forest land? On land where Adivasi or forest-dwelling communities hold rights under the Forest Rights Act? In a Scheduled Area where PESA applies? Within ten kilometres of a national park or sanctuary? On a river, a coast, or prime farmland? Near a place of worship or a sacred hill? This overlay is the single most important thing you can produce, because India's strongest levers — the gram sabha's forest-rights consent, the special protection near sanctuaries — are triggered by exactly these features.

3. What stage is it at, and what decision is imminent? Has the project been categorised and scoped? Has the EIA been prepared? Is a public hearing scheduled or past? Has the environmental clearance been granted? Is forest clearance pending? Is land acquisition beginning? Identify the next decision and its date, because the openings — the public hearing, the thirty-day appeal window to the Tribunal — are strictly time-bound.

4. What does it need next that it does not yet have? Every project depends on permissions it has not all secured — an environmental clearance not yet granted, a forest clearance pending gram sabha consent, land not yet acquired, consents not yet issued. The permission it still needs is where it is most vulnerable. A project awaiting its forest clearance or its public hearing is far more contestable than one already built and running.

5. Who else is affected, and who already opposes it? List the affected villages and gram sabhas, the Adivasi and forest-dwelling communities, the farmers and fishers, the downstream and downwind populations, and any local leaders, unions, lawyers, or organisations already concerned. You are almost never alone, and India has a deep network of environmental lawyers, legal-aid groups, and people's movements. Knowing who shares the stake tells you who your coalition can be.

A Worked Example

Consider an Adivasi community who learn that a bauxite mine has been proposed on a forested hill above their villages — a hill they hold sacred and from which their streams flow.

Applying the five questions: **What and who** — a named company, in joint venture with a state corporation, holds a mining proposal; the community traces the ownership and any listing. **Where** — the lease is on forest land over which the community holds, or can claim, community forest rights under the Forest Rights Act, in a Scheduled Area; the hill is a place of worship and the source of their water. **Stage** — the environmental clearance is under appraisal and the forest clearance is pending; no gram sabha consent has been sought. **What it needs next** — forest clearance that cannot lawfully proceed without settling forest rights and obtaining gram sabha consent, plus an environmental clearance still open to challenge. **Who else** — a cluster of affected villages, neighbouring gram sabhas, a people's movement, and environmental lawyers who know the Forest Rights Act.

From those answers a strategy writes itself: **the project's decisive weakness is that it needs forest land over the community's rights** — exactly the Niyamgiri lever — reinforced by the sacred and hydrological importance of the hill and any defect in the assessment. The community's first moves are to establish and record their community forest rights, to insist that gram sabha consent be sought and to prepare to withhold it, to demand the EIA and clearance documents through RTI, and to bring in the movement and the lawyers who fought Niyamgiri-type cases. That is a far stronger position than generalized objection — and it is the position from which the Dongria Kondh won.

STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. A community that can prove what is happening — with dates, records, photographs, and official documents — is a community that can act. One that only has fears and rumours cannot. This step builds your evidentiary base in three layers.

Layer 1: The Official Record

The first layer is the paper the project itself generates and the state holds. This is what makes a challenge credible,

because it is the government's and the company's own record used against the decision.

Assemble, as far as you can obtain them: the **EIA report** and the **environmental management plan**; the **Terms of Reference** and the screening/scoping decisions; the **public-hearing notice, proceedings, and minutes**; the **environmental clearance** and its conditions; the **forest clearance** file and any record of the settlement of forest rights and gram sabha consent; the **mining lease** or project approvals; and the **land-acquisition notifications and the social-impact assessment**. Much of this you are entitled to obtain through the **Right to Information Act**, which is one of the most powerful tools an Indian community has: a well-framed RTI application to the MoEFCC, the State authority, the Pollution Control Board, or the district administration can extract the assessment, the hearing record, the clearance, and the forest file. The public-hearing record deserves special attention: if the hearing was held far from the affected village, if the draft EIA was not available in the regional language, or if objections were not recorded and considered, that is a defect at the heart of the clearance.

Layer 2: The Physical and Environmental Reality

The second layer is the ground truth — what is actually happening and what is actually at stake, recorded in a way that will stand up.

Photograph and film the site and the activity, recording the date and location of every image: the survey markers, the felled trees, the earthworks, the pit, the ash pond, the diverted stream, the affected fields and homes. Map the project against what it threatens — the forest, the sacred hill, the river, the farmland, the sanctuary boundary, the settlements. Record the environmental baseline while you still can: the state of the forest, the flow and quality of the water, the standing crops, the fisheries, so that later damage can be shown against a documented starting point. Where you can, gather simple, dated measurements and repeat photographs from fixed points over time. This is the evidence that turns "we are worried" into "here is what is being destroyed, and here is where the law and our rights forbid it."

Layer 3: The Human Impact

The third layer is the community's own record, and in India — where projects routinely displace people and extinguish forest-based livelihoods — it is powerful.

Collect statements from the affected households: who they are, what land, forest, water, and fisheries they depend on, what they stand to lose, and how they will be displaced or impoverished. Record the community's relationship to the forest and to sacred sites, because cultural and religious rights carry real legal weight, as Niyamgiri established. Document the conduct of the public hearing and of any gram-sabha process — whether people were genuinely informed and heard, or presented with a decision already made. Record the losses: displacement, lost commons, lost forest produce, damaged health, drowned or dried farmland. These human records do two things: they are evidence of harm for the Tribunal, the courts, and the appraisal committee, and they are the material of a media and mobilisation campaign that can reach the state capital, Delhi, and the world.

One further habit repays itself many times over: read the environmental clearance's conditions closely and track them over time. Every clearance comes with conditions — on pollution limits, on green belts, on water use, on rehabilitation, on compliance reporting — and the proponent must file periodic compliance reports. Those conditions are a gift twice over: they are the authority's own admission of the risks the project poses, and their breach is a documented violation you can take to the Tribunal or the pollution board. A community that monitors the conditions and catches the breaches holds a live, renewable source of leverage long after the clearance is granted.

Keep everything organised, backed up, and dated. A shared, secured archive — copies in more than one place — protects your work and lets your allies and lawyers use it.

WHAT TO GATHER, AND WHERE TO FIND IT

This section is a practical checklist: the specific records that matter, and where in the Indian system to look for them. Not all will be available for every project, but knowing what to ask for — and being seen to ask precisely — is itself a source of strength.

The EIA report and environmental management plan. From the MoEFCC or the State authority, the PARIVESH portal, and the company: the assessment the clearance rests on. Read it for what it studies and what it omits — water, forests, displacement, cumulative impacts.

The Terms of Reference and categorisation. From the appraisal record: how the project was categorised and scoped,

and whether a key impact was left out of scope or the project wrongly down-categorised.

The public-hearing record. From the State Pollution Control Board: the notice, the venue, the proceedings, the minutes, and the objections. Compare it against reality — was it accessible to the affected, was the draft EIA available in the regional language, were objections recorded and answered? A defective hearing is a defect in the clearance.

The environmental clearance and its conditions. From the MoEFCC or State authority: the clearance letter and every condition attached. The conditions matter twice — as evidence of the risks the authority itself recognised, and because their breach is a violation you can act on.

The forest clearance and forest-rights file. From the forest and tribal-affairs departments: the forest-diversion proposal, the record of the settlement of forest rights under the Forest Rights Act, and the gram-sabha resolutions. Whether forest rights were settled and gram sabha consent genuinely obtained is often the decisive question — it was at Niyamgiri.

The land-acquisition record. From the district administration: the acquisition notifications, the social-impact assessment, and the consent obtained. The land-acquisition law now requires a social-impact assessment and, for many projects, the consent of a large majority of affected families — requirements whose breach is contestable.

Ownership, finance, and violations. From company filings, stock-exchange disclosures, and any inspection or monitoring reports: who owns and finances the project, and any documented non-compliance.

Using the Right to Information Act. The RTI Act, 2005 lets any citizen seek information from public authorities, with a decision due ordinarily within thirty days, and it is the single most effective evidence-gathering tool available to an Indian community. Frame precise applications for the EIA, the hearing record, the clearance and its conditions, the forest file, and the acquisition record. The application itself both gathers evidence and puts officials on notice that the community is organised and watching; a refusal can be appealed.

The act of assembling this record changes how you are treated. A community that arrives with the EIA, the hearing minutes, the clearance conditions, the forest file, and a map of its rights is a community that officials, tribunals, and courts take seriously.

STEP 3: BUILDING LOCAL OPPOSITION

Documentation gives you a case; organising gives you power. In India, where people's movements have repeatedly changed the fate of projects, a well-built coalition is your engine. This step builds it in four phases.

Phase 1: The Core Group

Start with a small, committed core — the households most directly affected, the people who know the forest, land, and water, and a few trusted, energetic organisers. This group does the early work: the documentation, the RTI applications, the mapping of allies. Keep it tight enough to move quickly and decide clearly, and make sure it includes people with standing — respected elders, gram-sabha leaders, community figures — whose word carries weight locally. In India the credibility of the affected community itself, especially an Adivasi or forest-dwelling community defending its forest, is your greatest asset; the core group exists to organise around it, not to substitute for it.

Phase 2: Broadening the Base

From the core, widen to the full circle of the affected: the surrounding villages and gram sabhas, the farmers and fishers, the downstream and downwind communities, and the local associations and unions. Hold meetings — and, crucially for forest cases, gram sabhas — where people can see the evidence and understand the stake: the map of the project over the forest and the rights, the EIA, the clearance conditions. Give people a clear, honest account of what is proposed, what it threatens, and what the community can lawfully do. The aim is a broad, informed base that can speak with one voice at the public hearing, in the gram sabha, in the press, and to the authorities. Breadth matters: a fight that visibly involves many villages and united gram sabhas is far harder to dismiss than one attributed to a few.

Phase 3: Allies and Expertise

India's decisive advantage for organised communities is its dense network of people's movements, environmental lawyers, legal-aid groups, and research organisations. Reach out to them early. Movements that have fought mines, dams, and coal plants know the Forest Rights Act, the clearance process, the Tribunal, and the press. Environmental lawyers and legal-aid

organisations can carry a case to the National Green Tribunal or the High Court. Research and documentation groups can supply the technical critique of an EIA — the hydrology, the ecology, the displacement numbers — that turns objection into evidence. National and international networks can amplify the case, as Survival International and others did for Niyamgiri, reaching investors and the wider public. Bring them in as partners, share your documentation, and let their experience shape your strategy. It helps to understand the ecosystem you are joining. India has decades-old people's movements built around particular struggles — against large dams, against displacement, against destructive mining — that carry institutional memory, legal contacts, and national networks. It has environmental-law organisations and clinics that litigate before the Tribunal and the courts. It has independent scientists and retired officials willing to critique a flawed EIA. And it has a tradition of solidarity across struggles, so that a small community's fight can draw support from movements and citizens far beyond the affected villages. Finding your place in this ecosystem early multiplies your strength.

Phase 4: Structure and Sustainability

A fight against a large project is long — often measured in years, sometimes a decade, as Niyamgiri was. Build a structure that can last: clear roles, a shared and secure archive, a way to make decisions, a means to keep the wider community informed, and a plan for the emotional, financial, and legal toll. Decide early how you will handle pressure and risk — because activists in India have faced defamation and criminal cases, surveillance, and intimidation, and a community should go in with its eyes open, its solidarity firm, and legal support on hand. Sustainability is itself a form of power: many projects count on communities tiring, and a coalition that endures is one that can wait out delays, appeals, and attempts to divide it.

A Worked Coalition Example

Return to the Adivasi hill community. Their core group — a handful of affected families and gram-sabha leaders — gathers the EIA, the clearance conditions, and a map of the lease over their forest rights, much of it obtained by RTI. They broaden the base by convening gram sabhas in the affected villages, where every household sees that the project needs their forest and that the law gives their assembly a say; the neighbouring gram sabhas join. They bring in a people's movement and environmental lawyers who recognise a Niyamgiri-type case at once, supply a hydrologist's critique of the EIA, and prepare both the gram-sabha strategy and a Tribunal challenge. They build a durable structure — a documentation lead, a spokesperson, a legal liaison, a secure archive. Within months the community has moved from a cluster of worried villages to an organised coalition with united gram sabhas, expert allies, a legal theory, and a clear demand: no forest diversion without our consent, and we do not consent. That is the position from which the Dongria Kondh won.

STEP 4: LEGAL CHALLENGES

Law is one of India's real levers, and India has built, in the National Green Tribunal, a court dedicated to it, on top of an activist higher judiciary. This section explains the routes, honestly, including their limits.

The National Green Tribunal

The most important legal fact for an Indian community fighting a project is the **National Green Tribunal**, established under the National Green Tribunal Act, 2010. It is a specialist court for the expeditious disposal of environmental cases, headed by a retired Supreme Court judge, sitting in New Delhi with benches in Bhopal, Pune, Kolkata, and Chennai. It has both original and appellate jurisdiction. Under its original jurisdiction it can hear any civil case raising a substantial question relating to the environment, ordinarily brought within six months of the cause of action. Under its appellate jurisdiction it hears appeals against, among other things, an order **granting or refusing an environmental clearance** under the Environment (Protection) Act — and such an appeal must be filed within **thirty days** of the clearance being communicated, extendable by up to sixty days for sufficient cause.

The Tribunal's powers are substantial: its orders are enforceable as decrees of a civil court, and it can **cancel or stay an environmental clearance** granted in breach of the law, order compensation and ecological restoration on the polluter-pays principle, issue stop-work directions, and impose penalties. For a community with a defective clearance and good evidence, the Tribunal is frequently the sharpest and fastest legal route available — but note the strict thirty-day window on clearance appeals, which makes early documentation and legal contact essential. It is worth distinguishing the two jurisdictions in practice. The six-month original jurisdiction, for any substantial environmental question, is the wider door — used to challenge pollution, illegal operation, and damage. The thirty-day appellate jurisdiction is the narrow, sharp one aimed squarely at a clearance or a consent, and it is the route most directly relevant to stopping a project at the approval stage. The Tribunal replaced an earlier and largely ineffective appellate body, and its arrival gave environmental cases a specialist forum with technical expert members alongside judges, and orders that bite because they are enforceable as a

civil court's decree, with penalties for defiance.

The Forest Rights Act and Gram Sabha Consent

India's most distinctive legal lever is the **Forest Rights Act, 2006** — the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act — read with the **Panchayats (Extension to Scheduled Areas) Act, 1996 (PESA)**. The Forest Rights Act recognises the individual and community forest rights of Adivasi and other traditional forest-dwelling communities, and its Section 6 empowers the **gram sabha** to determine forest-rights claims. In the Niyamgiri case the Supreme Court held that the affected gram sabhas would decide whether the proposed mining would infringe their cultural, religious, and community rights, that this process must be independent and uninfluenced by the proponent or the government, and that if those rights were affected the clearance would fall. When the twelve gram sabhas unanimously refused, the mine was stopped. The lesson is precise: **where a project needs forest land over which a community holds Forest Rights Act rights, the settlement of those rights and the consent of the gram sabha are legal preconditions, and a community that establishes its rights and withholds consent holds a decisive lever**. Establishing and recording your community forest rights is therefore among the most important legal steps you can take. Two related points strengthen this lever. First, diversion of forest land for a non-forest use such as mining independently requires clearance under the Forest (Conservation) Act, 1980 — a separate central approval that the forest-rights process feeds into and can block. Second, the Forest Rights Act's category of community forest resource rights lets a community claim recognition and management of the very forest a project would take, so that establishing those rights is not merely defensive record-keeping but the assertion of a legal interest the project must then overcome. The combination — recognised community forest rights, a forest-clearance requirement, and a gram sabha empowered to refuse — is what made Niyamgiri decisive.

The Constitutional Route: Article 21 and Public Interest Litigation

Behind the specific laws stands the Constitution. India's Supreme Court has long held that the **fundamental right to life under Article 21 includes the right to a clean and healthy, pollution-free environment**, and it has built into Indian environmental law the precautionary principle, the polluter-pays principle, and the doctrine of sustainable development. Crucially, India permits **public interest litigation**: with relaxed rules of standing, a public-spirited person or group can approach the **High Court under Article 226** or the **Supreme Court under Article 32** on behalf of an affected community or the environment itself. This route — slower and more discretionary than the Tribunal — is powerful where a fundamental right is at stake or where a matter reaches beyond the Tribunal's remit, and it is how many of India's landmark environmental principles were established. The lineage is real and citable: the Supreme Court has held, across a line of cases, that the right to life encompasses the right to clean water and air and a pollution-free environment, and it drew the precautionary principle and the polluter-pays principle into Indian law in the mid-1990s. These are not abstractions — they are the doctrines an advocate invokes to argue that a project approved without genuine assessment, or operating without controlling its pollution, violates a constitutional right the courts are bound to protect.

The Honest Limits

Be clear-eyed. The Tribunal and the courts are real levers, but litigation is uncertain and can be slow, appeals run to the Supreme Court, and a government-backed project has deep resources. Clearances are sometimes upheld; the strict thirty-day appeal window is easily missed; and even a favourable order can be met with a fresh clearance or a review petition, as the persistence around Niyamgiri shows. And the wider machinery is often skewed — clearances granted over defects, hearings bypassed, campaigners pressured. The direction of travel has at times been toward weakening these protections: a 2020 attempt to redraft the environmental-clearance rules, which critics said would narrow public consultation and even allow some clearances after the fact, drew enormous public opposition precisely because communities understood how much the existing safeguards are worth. That fight — waged in the press, in representations, and in the courts — is itself a reminder that defending the rules is part of the work. So use the legal routes — they are among your sharpest levers, and India's have produced outright wins — but pair them with the gram sabha, the public hearing, RTI, the press, and mobilisation, and measure success in consent asserted, clearances quashed or conditioned, delay, and rehabilitation as well as an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence does not speak for itself. To move an appraisal committee, a tribunal, a court, or the public, you must turn what you have gathered into clear, specific arguments aimed at the right decision. This section shows how.

From a document to a legal defect. Do not simply hand over the EIA; identify what is wrong with it. If the public

hearing was held far from the affected village or the draft EIA was not in the regional language, the argument is: *the mandatory public consultation was defective, and the clearance built on it cannot stand*. If the EIA ignores the displacement or the hydrology, the argument is: *the assessment failed to study a central impact and cannot lawfully support the clearance*. Tie every defect to the specific requirement it breaches.

From your rights to a precondition. The record of your community forest rights becomes: *this project cannot divert our forest land without settling our rights and obtaining our gram sabha's consent under the Forest Rights Act — and our gram sabha does not consent*. This is often the most powerful argument you can make, because it makes the community the decider, as Niyamgiri did.

From photographs to a documented violation. Dated, located images of felling, earthworks, or pollution in breach of clearance conditions become: *here is proof that the project is operating in violation, at this place, on this date — and here is the action the law requires*.

From testimony to harm. The households' statements become: *this project displaces and impoverishes these named families, extinguishes their forest livelihoods, and violates their right to a healthy environment under Article 21*.

From finance to leverage. The ownership and financing record becomes: *this project is run by a company answerable to its investors and to the public, whose reputation this fight touches*.

Match the argument to the venue. To the appraisal committee, argue the EIA's defects and the unresolved rights. To the National Green Tribunal, argue the clearance's illegality within the appeal window. To the High Court or Supreme Court, argue the violation of the fundamental right. To the gram sabha, put the decision where the law places it. To the press and the public, argue the human story — the sacred hill, the drowned fields, the displaced families. The same evidence, aimed differently, does different work.

STEP 5: MEDIA STRATEGY

In India, publicity is power. The country has a large, free, and combative press, an intensely engaged public, and a history in which national and international attention has changed the fate of projects. For a listed or foreign-owned project, coverage reaches investors and parent companies. This step turns your evidence and your story into pressure.

Why Media Matters Here

Niyamgiri became a national and global cause — the sacred hill, the tribe of eight thousand, the referendum — and that attention reached Vedanta's investors and made the fight impossible to ignore. Publicity does three things: it raises the political cost of a harmful decision, it reaches the financiers and investors who care about reputation, and it protects the campaigners themselves, because a watched community is harder to intimidate.

Building the Story

Lead with the human and the concrete, not the technical. The story is not "the environmental clearance was procedurally deficient"; it is "the hill our people have worshipped for generations, the forest we live from, is to be dug into an open-cast mine, and we were never truly asked." Use your strongest material: the dated photographs, the map of the project over the forest and the rights, the testimony of named community members, the fact — where it applies — that the law makes your gram sabha the decider. Keep the facts scrupulously accurate; your credibility is your armour.

Reaching the Audiences

Work several audiences at once. **Regional and national press** in the regional language and in English carry the story to the state capital and Delhi, where political pressure builds. **People's movements and civil-society networks** amplify and lend authority. **International media and networks** matter especially for listed or foreign-owned projects, because they reach investors and the global public. **Social and independent digital media** let the community speak in its own voice and document in real time. Provide ready material — clear photographs with captions, short accurate summaries, a map, and a few compelling testimonies — so that journalists and allies can carry your story faithfully. For a listed or foreign-owned project the investor route is worth deliberate attention: a company whose shares trade on a stock exchange answers to institutional investors, index funds, and lenders who are sensitive to reputational and human-rights risk, and a well-documented, accurately told story of a community's rights being trampled can reach annual meetings, analyst notes, and ethical-investment screens in a way a purely local protest cannot. The Niyamgiri campaign's reach into Vedanta's investor base is the standing example of how a village fight became a boardroom problem.

Discipline and Care

Two cautions. First, accuracy above all: one exaggeration handed to the other side can be used to discredit everything, and in India defamation and criminal cases have been used against campaigners. Second, care for people's safety: weigh what you publish, protect vulnerable individuals, and let the community decide together what it is willing to say publicly. Used with discipline, the press is among the most powerful and protective levers an Indian community has.

EMAILS & LETTERS

Below are eight templates for the written communications a campaign most often needs. Adapt them to your facts; keep them precise, calm, and specific; and keep copies of everything you send.

8A — RTI application for the EIA and public-hearing record (to the public information officer, MoEFCC / State authority / Pollution Control Board). *Subject: Application under the Right to Information Act, 2005 — environmental clearance file for [project].* "Under the Right to Information Act, 2005, I request certified copies of the EIA report and environmental management plan, the Terms of Reference, the public-hearing notice and proceedings, and the environmental clearance and its conditions for [project], [location]. Please provide these within the period prescribed, or state the legal ground for any exemption. [Fee enclosed. Contact.]"

8B — RTI application for the forest-clearance and forest-rights file (to the forest / tribal-affairs department). *Subject: Application under the RTI Act, 2005 — forest diversion and forest-rights record for [project].* "Under the RTI Act, 2005, I request copies of the forest-diversion proposal for [project], the record of the recognition and settlement of forest rights under the Forest Rights Act, 2006 in the affected villages, and the gram-sabha resolutions relied upon. [Fee enclosed. Contact.]"

8C — Written objection at the public hearing (to the State Pollution Control Board). *Subject: Objection at the public hearing for [project], [date/venue].* "We, residents of [villages], object to the environmental clearance for [project] on the following grounds: [the EIA fails to assess [water/forest/displacement]]; [the draft EIA was not made available in [language] / the hearing was inaccessible to the affected]; [the project requires forest land over our rights without our consent]. We ask that these objections be recorded and that clearance be refused or the assessment redone. [Attach evidence.]"

8D — Representation to the Expert Appraisal Committee / authority before clearance. *Subject: Representation against grant of environmental clearance to [project].* "We urge the Committee to refuse or defer clearance to [project] because [the public hearing was defective]; [the EIA omits [key impact]]; [forest rights are unsettled and gram sabha consent has not been obtained, contrary to the Forest Rights Act and the Niyamgiri judgment]. Appraisal is not a formality; we ask for genuine scrutiny of these defects. [Attach evidence.]"

8E — Gram sabha resolution (recording the community's decision). *Subject: Resolution of the Gram Sabha of [village], [date].* "The Gram Sabha of [village], having considered the proposal for [project] affecting our community forest resources and our cultural, religious, and community rights under the Forest Rights Act, 2006, resolves that the project would infringe those rights, and **withholds its consent** to the diversion of our forest land. This resolution is passed independently and free of influence. [Signatures / attendance record.]"

8F — Appeal to the National Green Tribunal (instructing counsel). *Subject: Appeal against the environmental clearance for [project].* "We wish to appeal the environmental clearance granted to [project] on [date], within the thirty-day period under the National Green Tribunal Act, 2010, on the grounds that [the public consultation was defective / the EIA was inadequate / forest rights and gram sabha consent were disregarded]. Please advise and act urgently, as the appeal window is short. [Attach the clearance, the EIA, the hearing record, and our evidence.]"

8G — Letter to the press (regional, national, or international). *Subject: [Community] moves to protect [hill/forest/river] from [project].* "For generations, the people of [villages] have lived from [forest/river] and worshipped [sacred site]. Now [project], by [company], threatens to [mine the hill / drown the fields / pollute the river] — over forest land the law says is ours to decide. We can provide photographs, documents, a map, and interviews. [Contact.]"

8H — Letter to a movement, legal-aid group, or NGO seeking partnership. *Subject: Request for support — [project] at [location].* "Our community faces [project] on our forest / land. We have gathered [the EIA, the clearance, the forest file, gram-sabha resolutions, photographs, testimonies] and believe the Forest Rights Act and a National Green Tribunal challenge apply. We ask for your legal and technical support and help raising the case, and we are ready to work as partners. [Contact and summary of evidence.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not every community has months and a lawyer at the outset. If you must act fast and lean, do these things, in this order, and you will have done the most important work.

1. Pin down the project and its footprint. Get the proponent, the type, and the boundaries. Overlay it, even roughly, on the forest, the rights, the sacred site, the river, the farmland. If it needs forest land over your rights, you may already have your strongest lever.

2. File RTIs immediately. Apply under the RTI Act for the EIA, the public-hearing record, the clearance and conditions, and the forest-rights file. The applications gather your evidence and put officials on notice.

3. Photograph and record everything, with dates and locations. The site, the felling, the earthworks, the affected homes and fields. Dated evidence costs nothing and matters most.

4. Use the public hearing and the gram sabha. If a public hearing is scheduled, attend and file written objections (8C). If forest land is involved, convene the gram sabha and, if the community so decides, pass a resolution withholding consent (8E). These are formal legal acts, not mere protest.

5. Watch the thirty-day clock and get a lawyer. If a clearance is granted, the appeal to the National Green Tribunal must be filed within thirty days. Contact an environmental lawyer or legal-aid group (8H, 8F) at once — this window is easily lost.

6. Raise the alarm and find your movement. Alert the regional press (8G) and reach out to a people's movement or legal-aid organisation. India's movements have fought these fights and can move faster than you can alone.

Even with little time, these six steps create a record, exercise your formal rights, protect the appeal window, and build a coalition — the things every later step is built on.

A final word on the rapid-fire path: do not let the perfect defeat the possible. A single well-framed RTI, a single gram-sabha resolution recorded, a single set of dated photographs, and a single phone call to a movement or a lawyer — done in the first days — are worth more than an elaborate plan drafted after the clearance is granted and the appeal window has closed. Speed protects your options; you can always deepen the case later.

WHEN THE SYSTEM IS TILTED

Much of this guide assumes the ordinary machinery works: hearings are fair, assessments honest, clearances scrutinised, rights respected. Often in India they are not. This section is about acting when the system is tilted against you.

The Common Indian Problem: A Skewed Process

India's characteristic difficulty is not the absence of law but a process skewed toward the project. Environmental clearances are frequently granted despite serious defects in the assessment. Public hearings are sometimes held far from the affected village, at inconvenient times, without the draft EIA in the regional language, or bypassed under exemptions — and objections, once recorded, are not always considered. The EIA is written by a consultant the proponent pays. And the clearance rules have repeatedly been diluted to speed projects through. The lesson is not that the rights are worthless — they are real, and they win — but that **you must insist, in writing and on the record, that each right be honoured, and treat every failure to honour it as a defect you can challenge.** A hearing held in breach of the rules, a clearance granted over unsettled forest rights, an EIA that omits a central impact — each is both an injustice and a legal opening.

When Rights Are Under Attack

A second form of tilt is the dilution of the protections themselves — attempts to weaken the clearance process, to narrow the public hearing, or to erode forest-rights consent. When the rules are under attack, the fight shifts to the public and political arena: mobilise the movements, raise the alarm in the national press, and make the cost of weakening popular environmental and tribal-rights protections visible. India's civil society has repeatedly pushed back against such dilution, and a broad, well-publicised defence of these rights is both safer and more effective than isolated resistance.

When Officials Will Not Act

Where officials grant a defective clearance or ignore a legitimate objection, escalate methodically. Put every objection and request in writing, so that the failure is documented — RTI is invaluable here. Take a defective clearance to the **National Green Tribunal** within the thirty-day window, and a violation of fundamental rights to the **High Court or Supreme Court** by public interest litigation. Where forest rights are disregarded, insist on the gram-sabha process the Forest Rights Act requires and, if it is denied, make that denial itself the subject of challenge and publicity. And make the failure public: an authority that ignores a quiet letter may act when the defect is on the front page and the movements are watching.

When to Reassess

Be honest with your community about the odds. Against a government-backed, already-built project, with a sound clearance and hostile machinery, an outright permanent stop may not be achievable, and it is not a failure to say so. In that situation the realistic and still-valuable wins are a clearance quashed or conditioned, forest rights asserted and future diversion blocked, delay that changes circumstances, proper rehabilitation and compensation secured, and exposure that raises the cost of the harm. Choose the fight you can win, protect your people — especially given the real risks campaigners face — and keep the record, because circumstances, governments, and courts change, and a well-documented campaign is ready when they do.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes the tilt is not mere inertia but corruption — a clearance that should never have issued, an EIA fabricated to order, an official with an interest in the outcome, a lease steered to a favoured company. Mining and large infrastructure are chronically exposed to it. This section is about recognising and confronting capture, carefully.

Recognising the Signs

Corruption rarely announces itself, but there are patterns. A clearance granted despite a plainly inadequate EIA; a public hearing engineered to exclude the affected; a consultant's report that reads as if written for the proponent; an official who moves between the regulator and the industry; a lease or acquisition that benefits a connected party; the sudden reversal of a sympathetic official's position — each is a warning sign. Copy-pasted EIAs, fabricated baseline data, and forged consent records have all surfaced in Indian cases.

Who Is Supposed to Guard Against It

India has machinery against corruption and for transparency. The **Right to Information Act** lets you extract the record and expose the defect. The **National Green Tribunal and the higher courts** can quash clearances tainted by illegality or fraud. Anti-corruption agencies and the auditor can investigate the misuse of public resources and the steering of leases. And the **free press and investigative journalists** have repeatedly exposed fraudulent assessments and captured clearances. These are the venues to which evidence of corruption should be directed.

How to Confront It — Safely

Confronting corruption demands even more care than ordinary campaigning. **Document rigorously and factually** — dates, decisions, documents, connections — and distinguish always between what you can prove and what you suspect. **Do not make public accusations you cannot substantiate**, both because they can be used to discredit you and because defamation and criminal cases have been used against Indian campaigners. **Route serious evidence to the proper bodies** — the Tribunal, the courts, the anti-corruption agencies, and established investigative journalists — rather than confronting powerful interests alone. **Protect the people involved**, especially insiders and witnesses. And **lean on your allies**: movements, legal-aid groups, and journalists know how to handle such material and can shield individuals. Corruption is real in Indian project clearances, and it can be confronted — the transparency and judicial tools exist — but it must be confronted with evidence, through institutions, and with sober attention to the safety of everyone involved.

INTEGRATION & TIMELINE

The steps in this guide are not a menu from which to pick one; they are strands to be woven together. This section shows how they fit, and over what kind of time.

How the Strands Reinforce One Another

Documentation feeds everything: it is the basis of the objection, the appraisal representation, the Tribunal appeal, the public interest litigation, the press story, and the gram-sabha decision. Organising gives the documentation weight and the campaign endurance. The gram sabha, where forest land is involved, can be decisive on its own — but it is stronger still when backed by the legal challenge and the press. The legal routes — the Tribunal, the High Court, the Supreme Court — turn the record into binding orders. The press turns it into political and reputational cost that reaches investors. Each strand is stronger for the others: a Tribunal appeal amplified by the press and backed by united gram sabhas is a different thing from a lonely petition, and a gram-sabha refusal reinforced by litigation and national attention is far harder to override — which is precisely the combination that won Niyamgiri.

A Realistic Timeline

Expect a long campaign. In the **first weeks**, pin down the project, file your RTIs, gather the initial documentation, attend any public hearing and file written objections, and reach out to allies. In the **first few months**, build the coalition, convene the gram sabhas, obtain and analyse the EIA and the clearance, and — if a clearance is granted — file the Tribunal appeal within the thirty-day window. Over the **following one to three years, and sometimes longer**, pursue the Tribunal and, where the fundamental right is engaged, public interest litigation; sustain the press and public campaign; and hold the line on gram-sabha consent. The Dongria Kondh fought for the better part of a decade before the 2013 vote. Build for endurance, mark and celebrate the interim wins — a stay, a quashed clearance, a condition, a gram-sabha refusal recorded — and understand that in India the decisive struggle is often to make the community the decider and to hold that ground.

Holding Two Truths

Throughout, hold the two truths this guide began with. India gives organised communities genuine, powerful levers — a Forest Rights Act that makes the gram sabha a decider, an environmental clearance with a public hearing, a specialist green court that can cancel clearances, a fundamental right to a healthy environment, a mighty Right to Information Act, a free press, and deep people's movements. And India's central weakness is a process often skewed toward the project, rules under repeated dilution, and real risk to those who resist. A community that understands both will neither despair nor overpromise. It will use every lever, assert the consent and participation the law provides, extract clearances and conditions where an outright stop is out of reach, protect its people, and keep the record — knowing that in India a village assembly of a few thousand once stopped a mining giant outright.

FINAL ASSESSMENT

The honest bottom line for an Indian community facing a destructive project is this. **You are not powerless, and you are not without precedent — India is a place where a village vote, made binding by the Supreme Court, stopped one of the world's largest mining companies.** The tools are real: a Forest Rights Act that gives Adivasi and forest-dwelling gram sabhas genuine consent power, an environmental-clearance law with a mandatory public hearing, a specialist National Green Tribunal that can quash clearances, a constitutional right to a healthy environment enforceable through public interest litigation, a powerful Right to Information Act, and a free press and dense civil society.

But the tools work best when you force them to. India's characteristic problem is not the absence of rights but a process tilted toward the project — clearances granted over defects, hearings bypassed, rules diluted, campaigners pressured. So temper hope with realism. Where the project needs forest land over your rights, or the clearance is genuinely defective, and you can reach the Tribunal, the courts, and the press, your chances of stopping, stalling, or reshaping a project are real — Niyamgiri is the proof. Where the government champions the project, the clearance is sound, and the machinery is hostile, an outright stop is hard, and the realistic wins are gram-sabha consent asserted, a clearance quashed or conditioned, delay, rehabilitation, and exposure.

Whatever your situation, the method is the same: identify the project and its weakest link precisely; document relentlessly, using RTI to extract the record; assert the participation and consent rights the law gives you — the public hearing, and above all the gram sabha's power over forest land; organise a broad and enduring coalition; bring in the movements and the environmental lawyers; take a defective clearance to the National Green Tribunal within the thirty-day

window and, where a fundamental right is at stake, to the higher courts; take the story to the press; and follow through. Combine the strands, protect your people, keep the record, and endure. The Dongria Kondh, eight thousand people defending a sacred hill, showed India and the world that a determined community with the law on its side can win outright. Their referendum is your reason to begin.